

municipality in which the residential complex is located shall, within the prescribed period and by the prescribed method of service, notify the landlord and all of the tenants of the residential complex of that fact. 2006, c. 17, s. 131 (3).

Same

- (4) The notice shall be in writing in a form approved by the Board and shall,
- (a) inform the tenants that their rent is reduced;
 - (b) set out the percentage by which their rent is reduced and the date the reduction takes effect;
 - (c) inform the tenants that if the rent is not reduced in accordance with the notice they may apply to the Board under section 135 for the return of money illegally collected; and
 - (d) advise the landlord and the tenants of their right to apply for an order under section 132. 2006, c. 17, s. 131 (4).

Same

- (5) A local municipality that gives a notice under this section shall, on request, give a copy to the Board or to the Ministry. 2006, c. 17, s. 131 (5).

Application for variation

132 (1) A landlord or a tenant may apply to the Board under the prescribed circumstances for an order varying the amount by which the rent charged is to be reduced under section 131. 2006, c. 17, s. 132 (1).

Same

- (2) An application under subsection (1) must be made within the prescribed time. 2006, c. 17, s. 132 (2).

Determination and order

- (3) The Board shall determine an application under this section in accordance with the prescribed rules and shall issue an order setting out the percentage of the rent reduction. 2006, c. 17, s. 132 (3).

Same

(4) An order under this section shall take effect on the effective date determined under subsection 131 (2). 2006, c. 17, s. 132 (4).

Application, reduction in municipal taxes

133 (1) A tenant of a rental unit may apply to the Board for an order for a reduction of the rent charged for the rental unit due to a reduction in the municipal taxes and charges for the residential complex. 2006, c. 17, s. 133 (1).

Order

(2) The Board shall make findings in accordance with the prescribed rules and may order that the rent charged for the rental unit be reduced. 2006, c. 17, s. 133 (2).

Effective date

(3) An order under this section takes effect on a date determined in accordance with the prescribed rules. 2006, c. 17, s. 133 (3).

ILLEGAL ADDITIONAL CHARGES

Additional charges prohibited

134 (1) Unless otherwise prescribed, no landlord shall, directly or indirectly, with respect to any rental unit,

(a) collect or require or attempt to collect or require from a tenant, prospective tenant or former tenant of the rental unit a fee, premium, commission, bonus, penalty, key deposit or other like amount of money whether or not the money is refundable;

(b) require or attempt to require a tenant or prospective tenant to pay any consideration for goods or services as a condition for granting the tenancy or continuing to permit occupancy of a rental unit if that consideration is in addition to the rent the tenant is lawfully required to pay to the landlord; or

(c) rent any portion of the rental unit for a rent which, together with all other rents payable for all other portions of the rental unit, is a sum that is greater than the rent the landlord may lawfully charge for the rental unit. 2006, c. 17, s. 134 (1); 2017, c. 13, s. 24 (1).

Same

(1.1) No landlord shall, directly or indirectly, with respect to any rental unit, collect or require or attempt to collect or require from a former tenant of the rental unit any amount of money purporting to be rent in respect of,

- (a) any period after the tenancy has terminated and the tenant has vacated the rental unit; or
- (b) any period after the tenant's interest in the tenancy has terminated and the tenant has vacated the rental unit. 2017, c. 13, s. 24 (2).

Same

(2) No superintendent, property manager or other person who acts on behalf of a landlord with respect to a rental unit shall, directly or indirectly, with or without the authority of the landlord, do any of the things prohibited under clause (1) (a), (b) or (c) or subsection (1.1) with respect to that rental unit. 2006, c. 17, s. 134 (2); 2017, c. 13, s. 24 (3).

Same

(3) Unless otherwise prescribed, no tenant and no person acting on behalf of the tenant shall, directly or indirectly,

- (a) sublet a rental unit for a rent that is payable by one or more subtenants and that is greater than the rent that is lawfully charged by the landlord for the rental unit;
- (b) collect or require or attempt to collect or require from any person any fee, premium, commission, bonus, penalty, key deposit or other like amount of money, for subletting a rental unit, for surrendering occupancy of a rental unit or for otherwise parting with possession of a rental unit; or
- (c) require or attempt to require a person to pay any consideration for goods or services as a condition for the subletting, assignment or surrender of occupancy or possession in addition to the rent the person is lawfully required to pay to the tenant or landlord. 2006, c. 17, s. 134 (3).

▼ Section Amendments with date in force (d/m/y)

MONEY COLLECTED ILLEGALLY

Money collected illegally

135 (1) A tenant or former tenant of a rental unit may apply to the Board for an order that the landlord, superintendent or agent of the landlord pay to the tenant any money the person collected or retained in contravention of this Act or the *Tenant Protection Act, 1997*. 2006, c. 17, s. 135 (1).

Failure to compensate under s. 48.1, 49.1, 52, 54 or 55

(1.1) Without limiting the generality of subsection (1), a landlord is deemed to have retained money in contravention of this Act, if the landlord is required to compensate a tenant under section 48.1, 49.1, 52, 54 or 55 and fails to compensate the tenant as required. 2017, c. 13, s. 25; 2020, c. 16, Sched. 4, s. 23.

Prospective tenants

(2) A prospective tenant may apply to the Board for an order under subsection (1). 2006, c. 17, s. 135 (2).

Subtenants

(3) A subtenant may apply to the Board for an order under subsection (1) as if the subtenant were the tenant and the tenant were the landlord. 2006, c. 17, s. 135 (3).

Time limitation

(4) No order shall be made under this section with respect to an application filed more than one year after the person collected or retained money in contravention of this Act or the *Tenant Protection Act, 1997*. 2006, c. 17, s. 135 (4).

▼ Section Amendments with date in force (d/m/y)

Rent increase deemed not void

135.1 (1) An increase in rent that would otherwise be void under subsection 116 (4) is deemed not to be void if the tenant has paid the increased rent in respect of each rental period for at least 12 consecutive months. 2020, c. 16, Sched. 4, s. 24.

Non-application

(2) Subsection (1) does not apply with respect to an increase in rent if the tenant has, within one year after the date the increase was first charged, made an application in which the validity of the rent increase is in issue. 2020, c. 16, Sched. 4, s. 24.

Deemed compliance with s. 116

(3) For greater certainty, if subsection (1) applies with respect to an increase in rent, section 116 is deemed to have been complied with. 2020, c. 16, Sched. 4, s. 24.

Application of s. 136

(4) For greater certainty, nothing in this section limits the application of section 136. 2020, c. 16, Sched. 4, s. 24.

Transition

(5) This section applies with respect to an increase in rent even if it was first charged before the day the *Protecting Tenants and Strengthening Community Housing Act, 2020* receives Royal Assent, provided the validity of the rent increase was not finally determined by the Board before that day. 2020, c. 16, Sched. 4, s. 24.

▼ Section Amendments with date in force (d/m/y)

Rent deemed lawful

136 (1) Rent charged one or more years earlier shall be deemed to be lawful rent unless an application has been made within one year after the date that amount was first charged and the lawfulness of the rent charged is in issue in the application. 2006, c. 17, s. 136 (1).

Increase deemed lawful

(2) An increase in rent shall be deemed to be lawful unless an application has been made within one year after the date the increase was first charged and the lawfulness of the rent increase is in issue in the application. 2006, c. 17, s. 136 (2).

s. 122 prevails

(3) Nothing in this section shall be interpreted to deprive a tenant of the right to apply

for and get relief in an application under section 122 within the time period set out in that section. 2006, c. 17, s. 136 (3).

PART VII.1

RENT FREEZE, 2021

Rent freeze period

Definition

136.1 (1) In this section,

“rent freeze period” means the period that begins on January 1, 2021 and ends on December 31, 2021. 2020, c. 23, Sched. 7, s. 2.

Non-application, certain rent increases

(2) This section does not apply with respect to,

- (a) accommodation described in clause 6 (1) (a) or (b);
- (b) an increase in rent for a rental unit taken in accordance with an agreement under section 121 or 123;
- (c) an increase in rent for a rental unit permitted under subsection 126 (10) or section 127 for,
 - (i) an extraordinary increase in the cost for municipal taxes and charges as described in paragraph 1 of subsection 126 (1), if the increase in rent is permitted by an order of the Board that was issued before the day the *Helping Tenants and Small Businesses Act, 2020* receives Royal Assent,
 - (ii) eligible capital expenditures as described in paragraph 2 of subsection 126 (1), or
 - (iii) operating costs related to security services as described in paragraph 3 of subsection 126 (1); or
- (d) an increase in rent payable by an assignee under a tenancy agreement for a site for a mobile home or a site on which there is a land lease home in accordance with section 165. 2020, c. 23, Sched. 7, s. 2.

No rent increase during rent freeze period

(3) No landlord shall increase the rent charged to a tenant during the rent freeze period, even if notice of the increase was given before the day the *Helping Tenants and Small Businesses Act, 2020* receives Royal Assent. 2020, c. 23, Sched. 7, s. 2.

Clarification, notice during rent freeze period

(4) For greater certainty, nothing in subsection (3) prohibits a landlord from giving a notice during the rent freeze period of a rent increase that takes effect after the rent freeze period. 2020, c. 23, Sched. 7, s. 2.

Conflict, *Housing Services Act, 2011*, rent geared to income

(5) For greater certainty, in the event of a conflict between this section and a regulation made under section 50 of the *Housing Services Act, 2011*, this section prevails. 2020, c. 23, Sched. 7, s. 2.

▼ Section Amendments with date in force (d/m/y)

PART VIII

SUITE METERS AND APPORTIONMENT OF UTILITY COSTS

Suite meters

137 (1) In this section,

“meter” has the same meaning as in Part III of the *Energy Consumer Protection Act, 2010*; (“compteur”)

“suite meter” has the same meaning as in Part III of the *Energy Consumer Protection Act, 2010*; (“compteur individuel”)

“suite meter provider” has the same meaning as in Part III of the *Energy Consumer Protection Act, 2010*. (“fournisseur de compteurs individuels”) 2010, c. 8, s. 39 (1).

Interruption in supply

(2) A landlord who has the obligation under a tenancy agreement to supply electricity may interrupt the supply of electricity to a rental unit when a suite meter is installed if,

(a) the suite meter is installed by a suite meter provider;

- (b) the supply of electricity is interrupted only for the minimum length of time necessary to install the suite meter; and
- (c) the landlord provides adequate notice to the tenant in accordance with the prescribed rules. 2010, c. 8, s. 39 (1).

Termination of obligation to supply electricity

(3) Subject to subsections (4) and (5), if a meter or a suite meter is installed in respect of a rental unit, a landlord who has the obligation under a tenancy agreement to supply electricity to the rental unit may terminate that obligation by,

- (a) obtaining the written consent of the tenant in the form approved by the Board;
- (b) providing adequate notice of the termination of the obligation to the tenant in accordance with the prescribed rules; and
- (c) reducing the rent, in the prescribed circumstances and in accordance with the prescribed rules, by an amount that accounts for the cost of electricity consumption and related costs. 2010, c. 8, s. 39 (1).

Information for tenants

(4) A landlord shall not terminate an obligation to supply electricity under subsection (3) unless, before obtaining the written consent of the tenant, the landlord has provided the tenant with the prescribed information. 2010, c. 8, s. 39 (1).

Limitation

(5) Where the primary source of heat in the unit is generated by means of electricity, a landlord may terminate an obligation to supply electricity under subsection (3) in the prescribed circumstances, solely if the landlord meets the prescribed conditions. 2010, c. 8, s. 39 (1).

Revising agreements

(6) The tenant may, within the prescribed time and in the prescribed circumstances, request that the landlord adjust the rent reduction provided under subsection (3) based on the prescribed rules and the landlord shall adjust the rent and provide a rebate based on the prescribed rules. 2010, c. 8, s. 39 (1).

(7), (8) REPEALED: 2020, c. 16, Sched. 4, s. 25 (1).

Electricity conservation and efficiency obligations

(9) If a suite meter is installed in respect of a rental unit and the obligation of the landlord to supply electricity has been terminated, the landlord shall, in accordance with the prescribed rules,

- (a) ensure that any appliances provided for the rental unit by the landlord satisfy the prescribed requirements relating to electricity conservation and efficiency;
- (b) ensure that other aspects of the rental unit satisfy the prescribed requirements relating to electricity conservation and efficiency; and
- (c) ensure that other prescribed requirements relating to electricity conservation and efficiency are complied with. 2010, c. 8, s. 39 (1).

Same, other prescribed circumstances

(10) If a meter or a suite meter is installed in respect of a rental unit, a landlord shall comply with the electricity conservation and efficiency obligations referred to in subsection (9) in such other circumstances as are prescribed. 2010, c. 8, s. 39 (1).

Tenant's application

(11) A tenant or a former tenant of a rental unit may apply to the Board in the prescribed circumstances for an order determining whether the landlord has breached an obligation under this section. 2010, c. 8, s. 39 (1).

Order, general

(12) If the Board determines in an application under subsection (11) that a landlord has breached an obligation under subsection (2), (6), (9) or (10), the Board may do one or more of the following:

1. Order an abatement of rent.
2. Authorize a repair or replacement that has been or is to be made, or work that has been or is to be done, and order its cost to be paid by the landlord to the tenant.
3. Order the landlord to do specified repairs or replacements or other work within a specified time.

4. Order that the rent charged be reduced by a specified amount and order the appropriate rebate.
5. Make any other order that it considers appropriate. 2010, c. 8, s. 39 (1); 2020, c. 16, Sched. 4, s. 25 (2).

Order, breach of subs. (3), (4) or (5)

(13) If the Board determines in an application under subsection (11) that a landlord has breached an obligation under subsection (3), (4) or (5), the Board may, in addition to the remedies set out in subsection (12), do one or more of the following:

1. Terminate the tenancy.
2. Order that the landlord assume the obligation to supply electricity to the rental unit and set the new rent that can be charged. 2010, c. 8, s. 39 (1).

Eviction with termination order

(14) If the Board makes an order terminating a tenancy under paragraph 1 of subsection (13), the Board may order that the tenant be evicted, effective not earlier than the termination date specified in the order. 2010, c. 8, s. 39 (1).

Determination re capital expenditures

(15) Except under the prescribed circumstances, for the purpose of section 126, a capital expenditure is not an eligible capital expenditure if,

- (a) a meter or a suite meter was installed in respect of a residential complex before the capital expenditure was made;
- (b) the capital expenditure failed to promote the conservation of electricity or the more efficient use of electricity; and
- (c) the purpose for which the capital expenditure was made could reasonably have been achieved by making a capital expenditure that promoted the conservation of electricity or the more efficient use of electricity. 2010, c. 8, s. 39 (1).

Charges, fees and security deposits

(16) Where a meter or suite meter is installed in respect of a rental unit and the tenant is responsible for the payment for the supply of electricity, sections 134 and